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Loudoun County Board of Supervisors, Public Hearing, Wednesday, December 10, 2025

Date Wednesday, December 10, 2025
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 1h 55m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8074>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8074>

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[00:08:10] really? Okay. Hey, Mr. Turner, how are you doing? Yeah. Okay. Good evening, supervisors. Good evening, staff. Good evening, Loudon. I'd like to call the order December 10th, 2025 Loudon County Board

[00:08:47] Supervisors Public Hearing. This room has a hearing loop. If you need hearing assistance, please switch your hearing aid to the telecall mode. If you need a headset, we have those available as well. Please see the clerk to request one. Would everybody please join me in the Pledge allegiance to the flag of the united states of america and to the republic for which it stands one nation under god indivisible with liberty and justice for all nations okay as a reminder

[00:09:27] to all members of the public addressing the board this evening you may only register to speak on matters that have been advertised for the public hearing due to the broadcast delay any member of of the public who if you are not in the boardroom wishing to address the board on items 1, 2, and 5, which are on the consolidated hearing agenda, please call the number that you see scrolling across your screen at this time. If you've registered to speak, you will be allowed at two and a half minutes. If you're in the boardroom, we ask that when your name is called, you come to the podium closest to you. State your name for the record. The timer on the podium will indicate your remaining time. When your time has expired, please yield the floor to

[00:10:07] the next speaker. If you're providing comments via phone, I'm going to ask that you use your cell phone, your stopwatch, or something to track your time because when you get to two minutes, I don't want to stop you because it messes up your flow, but when you get to two and a half minutes, I will stop you. So if you could track your own time, that'd be great. When taking public input for items, I would ask first if there's anyone in the boardroom wishing to speak, and then I would go to the moderator and ask if there's anybody online to speak. One of our items, I think everyone speaking with us is online. Please note that there's a slight delay between the broadcast and the boardroom. Our moderator

[00:10:45] this evening is Emma Harpingardner. Emma, can you hear me? Yes, Madam Chair. Wonderful. All right. There was an item that is being deferred. It is the Concord Industrial Park ZMAP 2024.0001, special exception 2024.0009, special exception 2024.0040.

[00:11:11] Mr. Sains, Supervisor Sains, I'm going to apologize to you because it is my practice to defer an item one time just by practice. If an applicant asks for an item to be deferred twice, I normally call the district supervisor and have that discussion with them.

[00:11:27] I did not realize that this applicant was making a request for a second deferral, which means I did not make a phone call to him wherever he's at them apologizing to. Where'd he go? Anyway, it's clear he doesn't care, but that's normally how I do that, but I didn't do that this time.

[00:11:48] The applicant did request a referral of item 6, LEGY 2024-0002, Concord Industrial Park, ZMAP 2024-0001, Special Exception 2024-0009, Special Exception 2024-0040.

[00:12:03] Therefore, this item will be deferred to the February 11, 2026 public hearing. This item was advertised. And so if you're in the boardroom right now and you do want to speak on the Concord item, you can absolutely still do that and speak on the item. It will not be heard until February, but if you want to, yeah, February 11th, but if you want to speak on the item, you can do that now, and you can do that again in February.

[00:12:29] I will say this item will not be deferred for a third time, so let's just say that right now. So I will ask, is there anybody here or on the phone that would like to speak on item number six, the Concord Industrial Park item? You speak in February.

[00:12:45] Okay. Thank you. Thank you very much. So we're going to adopt the consolidated agenda at this time. The board will hear the following items of the consolidated agenda. As a reminder, these items are being consolidated because there were no outstanding issues.

[00:13:01] Staff has recommended approval. The applicant has waived the presentation time, and no public speakers registered in advance to speak on the item. Item 1, amendments to the Chapter 878 of the Codified Ordinance of Loudoun County, Transit Occupancy Tax.

[00:13:17] That's a countywide item. I will make that motion. Item 2, repeal of Chapter 888 of the codified ordinance of Loudoun County, real estate tax classification, a property owned by surviving spouses of certain persons killed in the line of duty.

[00:13:33] I will make that motion. It's a countywide item. And Item 5, Legit 250005, this stops at Arcola Center. It is in the Dulles District. Mr. Letourneau would have liked to make that motion.

[00:13:48] is running late from work. I will make the motion for him, but please know that he would have liked to have made that motion if he was here. Are there any people here or online who would like to

speak on any of the items on the Consolidated Agenda? Items 1, 2, or 5. Seeing none, I move the Board of Supervisors to approve Motion 2B for the approval of the amendments of Chapter 878, provided in December 10, 2025, Public Hearing Action, Public Hearing item number one staff report this is item one amendments to the to chapter 878 of the codified

[00:14:24] ordinance of Loudoun County the transit occupancy tax motion was made and seconded by supervisor Brixman. Discussion on the motion. Seeing now I'm happy to say aye aye any opposed that motion will pass 801 Mr. With Mr. Turner being on his way in item number two repeal of chapter 888 of the codified ones of Loudoun County, real estate tax classification of property owned by surviving spouses of certain persons killed in the line of duty. Mr. Turner, would you like to second that motion? Second. Okay, motion has been made and second. I will say that this, oh, he's right on

[00:15:04] time, right on time. I will say that this item came to us by family members whose loved ones had been killed in the line of duty, and it was, as items do, they take, they can take a little bit of time to happen, but there was never anything but support to get this done. I do thank, we do thank all the family members that came to us, brought this issue forward to us, and we thank you, and we extend our condolences to you at all times for your

[00:15:42] loved one that was killed in the line of duty. Any other discussion on this motion? Seeing none, please say aye. Aye. Any opposed? That motion will pass 9-0. Mr. Letourneau, do you have it in front of you? Item number five? Yes. Okay. Right on time, sir. Okay. I move the Board of Supervisors suspend the rules. I move the Board of Supervisors. Well, you have to vote on that. Yeah. So that was a suspension of the rules? Yes. Oh, I'm sorry.

[00:16:16] Pardon me? It's unconsolidated. It's unconsolidated. Yeah, you'll need to spin the rules unconsolidated. Okay, great. Then I move the Board of Supervisors approve Leji 2025-0005, the shops at Arcola's, DCPA 2025-0002, subject to the proper statement dated December 4, 2025, and based on the findings for approval, providers attachments 1 and 2 to December 10, 2025, Board of Supervisors, public hearing, supplemental staff report.

[00:16:43] I was second in the discussion of the item, Mr. Letourneau. Yeah, so this is an item that would replace a planned commuter lot that has not been constructed. It has been planned since the mid-2000s. It's essentially a very old proffer for the original iteration of the Arcola Center project, which has gone through several iterations since.

[00:17:06] And it would replace the planned commuter lot with a transit contribution of \$1.4 million. And the reason it's important is because that commuter parking lot is now essentially adjacent into the development area where retail is being built.

[00:17:22] There's already one tenant there, Target, and there's others that are interested. But the commuter lot is an impediment to attracting additional development there, the planned commuter lot, 'cause it's taking up all the parking that we would need for the additional retail.

[00:17:38] So working with staff and talking with the applicant, we brought this forward because it really isn't needed anymore. We do wanna see the retail development there. Good for economic development. This is strongly supported by Mr. Reiser and the economic development team and there are no objections. Anybody else? I'm assuming you do not need a closing. Wonderful.

[00:18:04] All in favor please say aye. Aye. Any opposed? That motion will pass 920. Okay, I'm going to take these, I'm going to try to take the next items in the order of how many speakers we have on them so people can get out the room if they want to. And so I think we have the most speakers tonight on a legislative program item. And so we're going to take that item next, which is item number three. If staff will please come to the table for the ledge item. And we are ready when

[00:18:36] you all are. Good evening, Madam Chair, members of the board. So I have a very brief presentation on the 2026 legislative program, which was adopted by the board on November 18th and amended by the

[00:19:08] board on December 2nd. So the first legislative initiative adopted by the board and initiatives are legislative actions that the board is directly seeking the General Assembly to take up is the state acquisition of Oak Hill for the purposes of creating a state park. This initiative was also presented to the General Assembly last year. The board did appropriate \$22 million for the

[00:19:47] acquisition costs. The acquisition costs have been covered. The conservation fund, which the county is in partnership with on this project, recently acquired the property from the family. They also have an endowment. And if this was approved by the General Assembly, this upcoming session would be the only state park in the Commonwealth with an endowment attached. And I also want to more importantly note, the biggest selling point, no pun intended, of this park is that no state funds are required for the acquisition of this park. Yeah, I know that had been, I think

[00:20:26] that's worth saying and repeating and making sure that everyone in the public and the media and the General Assembly hears that, that we are not requiring nor asking, nor have we ever, any state funds for this park. That is correct, Madam Chair. The county, Neither the Conservation Fund, who I also spoke to today, is requesting state funds for this park.

[00:20:49] Good. Wonderful. The second is the authority to consider power and land use decisions. Currently, Dominion has a lawful obligation to deliver power to land applications that are approved by local jurisdictions, such as the Loudoun County Board.

[00:21:08] However, the board does not have the authority to take power into consideration on those land use decisions. And this would be an initiative to seek that authority for all localities in the Commonwealth. The third is enabling legislation for localities to establish a rent stabilization program, also known by housing advocates as the anti-rent gouging initiative.

[00:21:33] This would be permissive authority for localities around the Commonwealth to set up a cap on year-over-year rent increases in the Commonwealth, well, in their jurisdiction. The last is the removal of the cap on the home ownership grant program.

[00:21:48] The code sets out authority for local jurisdictions to have a home ownership grant program which allows local jurisdictions to appropriate up to \$25,000 per employee for them to purchase a home within the jurisdiction that they work.

[00:22:05] And so the board is seeking authority to remove that cap so that localities within the Commonwealth can establish caps that fit their communities. Right. Wonderful. So those are the four initiatives. I also want to highlight that a supplemental item was released on the legislative program to publicize the newest updates to the program that the board adopted on December 2nd.

[00:22:27] That includes support for solar tax credits at the state level, net metering, as well as participation in the net metering case for the SEC, as well as the multimodal improvements and DMV Moves funding initiative for Metro funding.

[00:22:47] Wonderful, wonderful, wonderful. So, Supervisors, do you have any questions for staff right now? So, I don't have questions, but I do want to just make a couple of statements.

[00:23:05] Loudoun County, over the past three years, maybe more, has put more legislation down the General Assembly regarding housing than any other county in Virginia. We continue to put the rent stabilization so that people don't get gouged on their rent down there.

[00:23:23] We have put in legislation that asks that a landlord or a homeowner who's renting something, a room, allows for the receiver of the lease to receive it in their language.

[00:23:44] We have, and today we're doing some other things as well. We have leaned into all the ways to get attainable housing in Loudoun County, have fair rent in Loudoun County, have people know what their rent's going to be long term, not have rent gouging or price gouging.

[00:24:06] All that we know to do to protect people who are renting and to get more attainable homes for rental and for purchase in Loudoun County, we are doing it right now. And we will continue to look for ways both through our legislative package and just our practices to put more attainable homes in Loudoun County where they are appropriate to go.

[00:24:32] And we will continue to put legislation in the General Assembly to protect homeowners and home renters. And I think every time we have the opportunity to say all we're doing, we should say that and make that known to obviously I think everyone.

[00:24:47] in Loudoun County knows that, but make that known to general assembly members as well, it's important to make that known. So I'll leave it at that. We do have members of the public to speak on this item, and so I'm going to call you up in order. When I call your name, come to the podium closest to you. When your time is up, you have to yield the floor to the next speaker we have i see i see four speakers on this item americo lopez nivia mendez

[00:25:19] um maybe rodriguez and andrea olivas good evening sir good evening board of supervisor can you hear me we can hear you just fine excellent my name is americo and i'm a resident of lisborough mobile home park today i'm here to speak about the um immediate crisis that we face in london 86 families are being displaced for this from their homes to make way to luxury houses these families have lived here for years and they're in this community and they're not living because they wanted but because

[00:25:53] they cannot afford to stay when developers can displace the entire community for economic games no one is truly safe and what is happening here it's not an isolated case it is happening across london and through virginia rents are raising faster than wages and families are being pushed out of the place where they where they work where their children go to school and where they have built their lives without protection displacement will only get worse that is why this project in

[00:26:26] sterling is so important the possibility of building 325 units of 100 affordable housing represents hope and stability for working families earning less than 60 percent and the median areas income it is a unique opportunity for these families to remain in their communities they call homes we're

here to say that um displacements families as a displacement families we support these housing projects in sterling with the hope of being able to return housing is not a privilege

[00:27:03] it is a right today we have the responsibility to act so that london can be placed where all families live and live with dignity and security thank you very much thank you sir thank you very much um nubia mendez followed by maybe rodriguez and if i mispronounce your name please pronounce

[00:27:30] correctly for me. Hi. Hi. Buenas noches Junta de Supervisores. Mi nombre es Nubia Menéndez. Vivo en Lisboa apartament desde hace 10 años. Trabajo en limpieza y me he dedicado a trabajar desde que he llegado a este país. Sin embargo en uno de los principales desafíos es el aumento excesivo de la renta. Cada año nosotros hemos soñado con comprar una vivienda digna, pero es no hecho imposible.

[00:28:06] Si no es que otra opción que rentar y rentar cada año que pasa, pero resulta que cada año que rentamos significa un aumento excesivo que no es de acuerdo a nuestro ingresos.

[00:28:22] Estar pagando altos costos en renta nos hace difícil cubrir otras necesidades de salud y comida y trabajos. Hasta en dos trabajos para poder cubrir todo, nosotros hemos pensado hasta mudarnos a otro estado.

[00:28:41] Pero aquí tenemos cerca la escuela de mi hija y otros servicios. Es por eso que estoy aquí para apoyar en la ley de estabilización de la renta. que nos permita rentar una vivienda digna y acordada a nuestros ingresos. Gracias.

[00:29:00] Gracias. Good evening, Board of Supervisors. My name is Nubia Mendez, and I have lived in Leedsburg Apartments for 10 years. I work in cleaning, and I have dedicated myself to working ever since I arrived in this country.

[00:29:18] However, one of the main challenges, it is the excessive increase in rent every year. We have dreamed of buying a decent home, but it has been impossible, and we are left with no other option but to rent year after year.

[00:29:35] But every year that we rent means an excessive increase that does not match our income. Paying such high rental costs makes it difficult to cover other needs such as health, food, and we work up to two jobs just to cover everything.

[00:29:53] We have even thought about moving to another state, but here we have my daughter, a school, and other services nearby. This is why I am here, to support a rent-estabilization law, one that allows us to rent a decent home that is in line with our income.

[00:30:15] Thank you. Thank you. Thank you, ma'am. Maybe Rodriguez and Andrea Alvarez. Again, hi. So, I'm Maeve Rodríguez. Yes, yes, ma'am.

[00:30:31] Good afternoon, members of the Board of Supervisors. My name is Maeve, and I speak today on behalf of New Virginia Majority and the broader community. I want to address a crisis that is affecting thousands of families in Loudoun. Abused rent increases.

[00:30:47] Since 2019, in some parts of the state, rent has risen by more than 30%, and in 2014 alone, it increased by 6% to 9% in several areas. A minimum wage worker must work more than 80 hours a week just to afford a one-bedroom apartment.

[00:31:09] This is not just an individual problem. It is a systemic one. That's why we support the county's legislative agenda, a proposal that would allow local governments to limit annual rent increases. This measure doesn't impose a policy. It simply gives counties the authority to decide whether and how to implement it.

[00:31:35] These policies already exist in nearly 200 cities across the country. They work. They protect tenants from extreme rent hikes, providing families with stability, and allow them to remain close to their schools, jobs, and support networks.

[00:31:50] Without these protections, many families are being displaced overnight. not because they want to leave, but because they can't afford to state. Stable housing not only improves children's health and academic performance, it also reduces public costs for emergency services, shelters, and assistance programs.

[00:32:12] That's why we urge you to support this legislative tool. We cannot keep doing the same thing and expect different results. Housing is not a privilege, it is a right. And today, we have the opportunity to protect and prevent further displacements in our communities.

[00:32:30] Thank you very much for your time. - Thank you. Thank you very much, Ms. Rodriguez. Andrea Alvarez, not on my page.

[00:32:48] - Good evening. - Good evening. - Buenas noches. - Buenas noches. Hola, buenas noches. Miembros de la Junta de Supervisores. My name is Andrea, leader of the new majority of Virginia.

[00:33:04] One of the issues that we care about as a family is the excess amount of rent, because every year we increase the rent. For example, this year, we increased \$100 to renew our contract, at the point of spending in this moment almost \$2,000 for a apartment of only two quarters.

[00:33:26] That's why we support a stabilization of the local rent. Los salarios están estancados y no aumentan, pero la renta sí. Los beneficios son claros. Protección inmediata para los inquilinos. Estabilidad económica para las familias y el condado.

[00:33:43] Mejores resultados educativos para los niños que no tienen que cambiar de escuela constantemente. Una medida rentable y justa, más eficiente que depender únicamente de los subsidios o vales. Gracias. Gracias, señora López.

[00:33:59] Good evening, members of board supervisors. My name is Andrea, and I am a leader with the New Virginia Majority. One of the issues that most concern us as a family is the excessive increase in rent. Every year, our rent goes up. For example, this year, our lease renewal came with 100 increase, bringing our monthly payment to nearly \$2,000 for just two-bedroom apartments.

[00:34:28] This is why we support a local rent stabilization publicity. Wedges are not increasing, but rent continues to rise. The benefits are clear. Immediate protection for tenants.

[00:34:44] Economic stability for families and for the county. Better educational outcomes for children who don't have to change school constantly. A fair and cost-effective measure, most efficient than reliance only in subsidies or brochures.

[00:35:02] Thank you. Thank you. Thank you very much. As it turns out, I do have, I was looking on the wrong sheet of paper, there is one more person, Alejandra Hernandez. Are you here? Yes.

[00:35:33] Good evening. Good evening. Thank you for the time, Bob Supervisors. As you can see, English is not my first language. I'm going to try my best, and I hope I don't make any mistakes. I'm here on behalf of the new majority of Virginia. As you can see rent and affordable housing is a problem across the board.

[00:35:52] My experience myself, I'm a single mom, so I do have a full-time job. But even with that, I cannot afford to do a decent housing. So we're not asking anything for free. We're just asking for you guys to help us to find a quality, decent life.

[00:36:10] What does that mean for me? At least for me, I know every person has a different situation. um for me it means to spend time with my kids being able to raise them properly being able to teach them values that they will grow with them down the line and if you see it as an investment these kids will be the tomorrow of the county because i don't want to leave virginia i love where i lived since i came from mexico this is the state i've been living for almost 12 years now So, I like here, I think it's a great state, I think it's a great county, London County,

[00:36:49] but it's not giving us the chance right now to stay here where we are, just because, once again, the rent are too high, affordable housing sometimes is not even affordable, because if we go to the Housing Department, I made too much to be approved for a voucher, but I don't made enough to have a decent life. So how is that possible if we call it one of the richest counties in the country that we don't have, not even home for us, for these kids down the road. So we're just asking you

[00:37:24] to definitely support and stipulations on rent and maybe create something that we can afford as a working-hard community. That's all that we're asking for. Thank you. Thank you. And Ms. Hernandez, your English is beautiful. Oh, thank you. It's beautiful. Thank you.

[00:37:41] Supervisors, there's not a motion needed on this item. No, because it's just part of the LEDGE program. So there's not a motion that's needed, but if you want to make comments or ask any questions because there's not a motion needed, you can do that right now, and I will allow that with the same amount of time that I allow for if we had a motion or had questions.

[00:38:02] So if you do, please turn your lights on. Ms. Bricksman. Thank you, Madam Chair. I was saving my comments for inside a motion. I did think that we had a motion tonight. I just want to thank John and Mr. Quintine, Mr. Freeman and Mr. Quintine, for all of your hard work and for incorporating our requests and for including the multimodal language in the transportation section of the legislative agenda.

[00:38:28] Thank you, colleagues, for supporting that. I also wanted to thank my colleagues and staff for supporting the permissive initiative to allow jurisdictions to reclassify lawn care equipment in our tax code so that we might reduce or eliminate a tax if a business owner chooses to use battery-powered tools for lawn care. Hopefully, that passed the Senate last year, I believe, unanimously passed the House and was vetoed by the governor. So I'm hopeful for this year for that to happen.

[00:39:05] And lastly, I do wanna thank New Virginia Majority for telling your stories, and not just this year and this term, but also last term. I have the honor of serving on Lieutenant Governor-elect's transition team, and I sit on the housing policy subcommittee there.

[00:39:27] And our draft is due tomorrow, I'm sorry, is due Friday to the policy coordinator of that team housing and because of your stories language is included in there about preventing mid-year rent hikes preventing packages that would require you to pay for the internet when you don't want to be paying for

the internet and also language about stability in rents and anti-gouging and so I wanted you to know that not only have you influenced our legislative agenda here at

[00:40:06] the county level but you are influencing policy hopefully at the state level and in the administration at the state level they are all ears and not just for this legislative session coming up in 26 but for the next four years so please keep coming to tell your stories I know it's not easy I know that you have very very busy lives I know it can be intimidating especially if English is your second language. But I wanted to thank you for all of your work. Thank you, Madam Chair. Thank you.

[00:40:41] I'm going to respectfully and slightly disagree with Ms. Brixman. They're not all ears down in Richmond. They're not. We are putting legislation down there every year, and it's not passing. I'm not saying it's getting vetoed. I'm saying it's not passing. And so we do want you to come here, and we appreciate you coming here. And I think the statements of not only do you have to have rent stabilization and and know what your rent's going to be but sir I agree with you completely that housing is housing is dignity and the truth is

[00:41:16] it costs so much more for everyone for a person or a family to be displaced out of their house it's much more expensive to not have a home than to have a home but they're not listening they're not they're they're they're not listening Ms. Brixman, stop it.

[00:41:34] I didn't say her. I'm saying they are not listening. You can talk about who you want to. Ms. Brixman, you're out of order, and I don't appreciate you interrupting me. They are not listening to us. We are putting legislation down there year after year after year, and it's not even getting out of committee.

[00:41:51] They are talking about taking land use rights away from us, which will end up costing everybody more money. So I need you to come here. I want you to come here, but I also want you to get a hold of your state delegates, get a hold of your state senators and your state delegates, write letters to your state delegations, because we can put stuff down there all day long, and we do, and we can go down there every year, and we do, but unless it gets passed out, it just doesn't mean anything for us right now.

[00:42:18] Your stories are important. You are important. Your kids are important. They have to see you, too, though. And so there is a date, and I will find out the date and get it over to Isamar and Sophia, that New Virginia Majority and others do go down to the General Assembly.

[00:42:36] Go down with them. Go to their offices. Talk to them, because we've got to get this legislation out of their committees, out of their subcommittees and their committees. You better believe the realtors are down there talking to them and the landlords are down there talking to them.

[00:42:53] We need you all's voices down there talking to them as well. So we'll make sure, I'll make sure that you know when those days are going to be held so you can go down there and give your voices because we have got to stop the price gouging, the rent gouging, the taking advantage of people who may have English as their second language.

[00:43:11] All that has got to stop. All of it has got to stop. And so I'm begging you all to come with me when we go to the General Assembly and talk to them about those things. Thank you. All right. Thank you.

[00:43:27] Thank you both. Let's go to the next item. The next item is -- well, we're going to go and do item number four, which is the Sweet Tweet Home Daycare.

[00:43:45] Could staff please come to the table for the Sweet Tweet Home Daycare? And can the applicant come to the table as well? While they're coming, Mr. Galindo, can you tell me, we haven't had one of these in public hearing for a long time, a daycare application.

[00:44:03] We used to get these all the time. What's different about this one that this is coming to us? It's the number of children requested given the size of the lot. It's a less than 5,000 square foot lot, and it's requesting up to 12 children, so it's just a threshold.

[00:44:20] Oh, it's just a threshold that's been overreached. Okay. All right. All right. Well, we're ready when you are. I think the applicant was here, correct? You have the applicant. Yes, sir. Yes, ma'am. Okay. All right. We're ready when you are. Mr. Galindo.

[00:44:38] Good evening. Good evening. My name is Tess Lynch with the Department of Planning and Zoning, here to present the application for Sweet Tweet Home Daycare. Since publication of the packet, staff has received one comment, a phone call citing concern regarding the daycare being permissible within an HOA.

[00:45:02] The subject property is located south of Winter Grove Drive and west of Gatwick Square. The site is located within the suburban neighborhood place type in the Ashburn Election District. It is a total of 0.06 acres.

[00:45:21] The applicant is requesting a minor special exception to increase the number of children from 9 to 12. Pictured on screen is the annotated specs plat showing the limits of the specs. Staff has proposed two conditions related to the designation of a nearby playground as the ordinance required play area and to the timing of pickup and drop-off for parking.

[00:45:48] Staff supports the request to increase the number of children in the daycare from 9 to 12. Okay, thank you. Questions? Mr. Turner, this is your district. I go to you first, ma'am. Sir. Emily Townsend, sir. Not for a motion, just for questions, Mr. Turner.

[00:46:06] I have no questions. You have no questions. Anybody else have questions? No? Okay, I'll have questions for the applicant, but not for... All right. Hi, how are you? I'm here. Thank you, I'm fine. Okay, hold on just one second. - Mr. Seng?

[00:46:22] - Sorry, thank you Madam Chair. Go back to the image of the house in the neighborhood, if you may. So as Chair Randall asked earlier that we kind of fix some of the zoning for this so that all of them are not coming in front of us anymore, but what was the reason for this one again coming in front of us?

[00:46:47] - It's going from nine to 12 children. - Nine to 12 children. - So they're allowed nine. - How old are the ages? - I would defer to the applicant on that. - Okay, and then the other question I don't know if you know this or I have to wait until the applicant, well, depending on the ages, where do they go for playtime? Is it, because I can't, I don't think they can't see any play equipment in the backyard. I think that's probably all questions for the applicant who's going to

[00:47:17] speak in just a second. I do have an image that does show that here. I can share that. So this in yellow is the location of the playground and it shows the measurement from the house.

[00:47:43] oh so they would use the neighborhood playground yes okay so then the house and questions at the end of the street it's up here right here okay and then they go down yes okay and uh is there is this in the hoa neighborhood yes do you know if the applicants receive approval from the hoa to let i would defer

to the applicant okay oh and what's in because i can't see in the picture there what's included in the play area there is a playground like a swing set i defer to the

[00:48:15] the applicant on that as well okay all right thank you let me wait till applicant mr turner do you have questions i have no question okay hi how are you good thank you you can introduce yourself you have 10 minutes and you can sit there or stand on the podium sure my name is marzia my last name is mirza salehi i had my home daycare since 2019 and the license is for three years three months to five years old kids and about the HOA I already asked

[00:48:51] them this is in my neighbor it is less than a mile and they said I can use that anything else you want to add before you go to questions yeah what was the other question it was Asian HOA yeah and how far the playground is and you said all - Oh yeah, we are using that playground.

[00:49:19] It's very close to our house. I told it's like less than a mile. And also the backyard, which is not showing in the picture, but then the kids, as I said, they are three months to five years old.

[00:49:36] It doesn't that mean I have like all of them five years old. Usually we have like four infant. and like maybe three or four toddler and then the rest of that is like preschooler so and then i have two assistants i work and then they are also helping me um so i talked already to the licensing also they said because i have a assistant also so

[00:50:11] hopefully I can do it. I am trying to make the best environment for the kids, but then during a year, which I check with zoning, I just follow up the rules of Loudoun County.

[00:50:30] Okay, thank you. Do we have questions for the applicant, Mr. Turner? Mr. Sainz. Thank you, Madam Chair. What's the rules for daycare provider to children ratio? Do we know what that is?

[00:50:47] I can look that up. Okay. I don't know what the app, do you know that? Yeah, it depends about the score because like infant has four score and toddler has like three score and preschooler like four or five years old is like two score.

[00:51:10] So it depends how many kids you have, but then like till 16 score, one person is enough for home day care. - Thank you. - And my only question is about pick up and drop off.

[00:51:28] I'm going towards, tell me about pick up and drop off. Do you have, are any of these kids siblings and are any of your neighbors complaining about too many cars in the parking lot or picking up and dropping off? Any pick up and drop off issues at all? - Sure, the drop off and pick off time, we are open from 6:00 a.m. to 6:00 p.m., but then parents' jobs are different.

[00:51:48] Some of them start early, some of them start late. Usually start the drop-off is like from 6 to 9:30, 10 o'clock, and then pick up and start from 3 to 6. So they are not in the same time. And since 2019, I don't have any problem with the parking.

[00:52:07] And they are all like following up the rules, which I mentioned in my handbook also. So they are going to text me 10 minutes, 15 minutes before calm. So I'm going to make ready the child. and then they are most welcome to come and pick up their child.

[00:52:23] Okay, wonderful. Thank you. We do have two speakers on this item. The speakers are Robert Rogers and Emily, I think it's Townsend. Good evening, sir.

[00:52:40] Good evening. Can you hear me okay? Okay, you're fine. Okay, great. My wife and I purchased a house on Gatwick Square, which is kind of the opposite corner of this daycare center. In June of this year, for our daughter and her husband and their two small children, one is a little over two, one is three months.

[00:53:01] The way their townhouse's parking is laid out is they have one spot in front of their house and one across the street. I'm not in favor of increasing the capacity for the daycare center because I think it will draw additional traffic into the neighborhood. That picture doesn't really show it, but Gatwick Square, it's the street that goes at the bottom of the picture, is a straightaway with no speed bumps, and people tend to speed on that street.

[00:53:26] I've seen many cars speed in the couple months we've been there, and I'm anxious and concerned for my grandchildren that additional capacity will lead to additional cars and additional traffic, and so I'm not in favor of the increase.

[00:53:42] So that's all I have to say. Thank you, sir. Thank you. Is there anybody else here who would like to speak on this issue? I don't have anybody else on my list. That was for another item. Anybody on the call that would like to speak on this, on the line? Anybody?

[00:53:58] No? Okay. All right. This is in Mr. Turner's district. Mr. Turner, I will go to you for a motion. Thank you, Madam Chair. I move the Board of Supervisors suspend the rules. Second. Motion made to suspend the rules and seconded.

[00:54:16] Discussion on suspension of the rules. All those people say aye. Aye. Any opposed? The motion passed 9-0. Would you like to make a motion? I move with the Board of Supervisors, Approval EG 2025-0009, Suite, Tweet, Home, Daycare, Specs, 2025-0015, subject to the conditions of approval dated October 8th, 2025, and based on the findings for approval, provide as attachments 1 and 2 to the December 10th, 2025 Board of Supervisors public hearing staff report.

[00:54:43] Second. Motion is made. Second with Supervisor Brixman. Discussion on the motion, Mr. Turner. I have no comments. All right. Mr. Brixman. Thank you. Quality, affordable child care has been a big issue for me since I came into office in 2020. I appreciate your service.

[00:54:59] I hope that you are taking advantage of any of the programs that the county is offering as far as training and as far as our fee reduction program that we do have in place now. Congratulations on your business. It looks like it's going well, and I'm proud to support you.

[00:55:15] Thank you so much. And then I want to say to my neighbor. Whoa, whoa, whoa. You can say to him. Yeah, you're not doing that right now. No, because I feel bad. Well, you can talk to him when we finish. You can talk to him outside. Thank you. Other people want to speak?

[00:55:31] So I would say this. I don't want to – he might have left already. I don't want to ignore what Mr. Rogers said because traffic does matter, which is why I asked you about traffic. But I'm going to believe that adding three cars over a three hour period in the morning and a three hour period in the evening, especially since they're staggered, will not create significantly more traffic.

[00:56:03] I'm also going to assume that the people who are coming have children in their cars. And so they are probably driving pretty safe themselves because they're driving to a daycare with their own kids in the car and they want to be very safe because they have their own kids in the car. If we were talking

about much higher numbers or different numbers, I would take that into account, but I think that numbers that small won't impact traffic.

[00:56:30] I also believe that it is really hard to find daycare right now. It's expensive, and if we can have more in-home daycare options, especially in-home daycare options, that's actually very helpful. The fact that your kids are tiny kids, you have baby kids, three months to five years old, they're little tiny people.

[00:56:52] So they're not going to be kind of in the neighborhood and stuff a lot either. And so I just don't believe that three, and they could even be siblings. It may just be one car or two cars if you have siblings come, which does often happen.

[00:57:09] And so I'm not ignoring you, but I think that those three more cars are such, if it's even three more, over three hours, it's so minimal that I don't see this as being a problem.

[00:57:28] Thank you so much, Mom. Can I add something? Yeah, sure. So the Gatsby Square is going to the winter group. We already told them we have to parking. But then sometimes parents come and then they see they can park in the winter group.

[00:57:47] I cannot, like, decide it for them if the space is available, you know. They're going to park in the winter group. How long does the pickup, how long does the drop, how long might the drop-off take? It's just, like, less than 10 minutes. Less than 10 minutes, yeah, at the most probably. Yeah, okay, all right.

[00:58:04] Would you like a closing, Mr. Turner? Okay, you are welcome to speak to your neighbor after we're finished here. All in favor say aye. Aye. Any opposed? That motion passed 9-0. Thank you. Thank you. All right, the next item is item number seven.

[00:58:31] Would staff either come to or remain at the table, and would the applicant come to the table as well?

[00:58:48] Good evening.

[00:59:07] Good evening. My name is Christian Maldonado with the Department of Planning and Zoning here to present the application for Panovich property rezoning. Since publication of the staff report, the applicant has informed staff that a community meeting took place with Briarfield Estate on Thursday, December 4th.

[00:59:24] The property is located in the Arcola area east of North Star Boulevard, west of Arcola Mills Drive, and north of Briarfield Lane in the suburban neighborhood place type and Little River Election District. The applicant is proposing a zoning map amendment to rezone the property from the CR1 Legacy Zoning District and IP Zoning District to the IP Zoning District and zoning modifications to reduce and eliminate buffering and setbacks.

[00:59:53] The proposal contains two parcels, the Evergreen's Meadow property shown in green and the Panovich property shown in blue. The Evergreen Meadows property would remain IP with revised commitments proposed with the rezoning of the Panovich property from CR1 to IP.

[01:00:08] The proposed layout is shown across two development areas, shown in gray hatching. The zoning ordinance requires a building setback of 75 feet from the surrounding properties. The applicant is proposing to reduce that to 35 feet, shown in red. The zoning ordinance requires a 25-foot buffer adjacent to the existing daycare, shown in pink.

[01:00:29] The applicant is proposing to eliminate the buffer and building setback, shown in yellow. The properties are bordered by single-family homes to the north and south and industrial uses to the west and east. Staff has identified an outstanding issue with land use incompatibility.

[01:00:47] The suburban neighborhood place type anticipates primarily residential, retail, and service uses. The applicant is proposing to permit industrial uses and has proffered out several listed here, including data center and major utility. The requested rezoning would still allow for the development of industrial uses, some of which are incompatible with the place type, including flex building permitted by right, and other industrial uses permitted by special exception.

[01:01:14] Staff recommends the applicant proffer out flex building and the remaining industrial uses permitted by special exception. Staff cannot support the development of these uses as they are not anticipated and are incompatible with the place type.

[01:01:33] Further, the applicant is proposing to reduce and eliminate setback and buffer adjacent to existing and commercial uses. Should the rezoning move forward and allow uses that don't fill well with the surrounding area? Staff would recommend enhanced measures to improve compatibility.

[01:01:49] Because of this, staff cannot support the requested setback and buffer reductions and instead recommends larger setbacks and more buffering to better separate these incompatible uses from nearby residential and commercial uses. Staff cannot support board approval of the application as it remains inconsistent with the place type.

[01:02:08] Staff is happy to answer any questions. Thank you. Mr. Crony, this is your district. Would you like to ask questions? Sure. Thank you, Chair Handel, and thank you for that presentation. What is the FAR and the square feet? The permitted AFR is, excuse me, FAR is 0.6, and the square footage proposed is approximately 164,000 square feet.

[01:02:33] That would be equivalent. And that's with the other property, too, the IP property? That's correct. Okay. What additional screening does staff recommend to mitigate the impact of IP on residential uses? do you recommend i know the red area why don't you go back to that slide with the concept development plan the picture the cdp yeah okay so there's two measures there's two points here with the mitigation one for the screening we would like to see more landscaping or higher walls or something that's going to be more compatible with the surrounding residential

[01:03:11] uses additionally staff wants to note that the industrial zoning district is not anticipated in this place type whatsoever. So regardless of whatever compatible industrial use might be built they would still be able to build to an industrial standard based on the site-specific constraints.

[01:03:30] So that's something to note as well but we would generally from a screening standpoint look for more plantings, look for further setbacks of buildings and parking areas away from residential uses or the commercial use to the east. Right and that ever the property with the red that had a 75 foot setback correct when it was approved there was an original rezoning on that parcel back in 2018 evergreen meadows that's correct and that that reduced the setback to 35 it was it's being reaffirmed now with this application okay so it's the same setback

[01:04:08] as before that was approved on that parcel specifically correct okay so i noticed the minimum IP zoning district size must be 10 acres and this site is 6.278. Does staff see this as an incremental addition? That's correct. Okay. It's permissible in the zoning ordinance for an acre.

[01:04:26] Because it's an incremental addition because of the surrounding IP. That's correct to the west of the property. To the west. Okay. I think that's all the questions I have. Thank you. Thank you. Mr. Sainz does this thing for me where he brings it up like the Google Maps picture which is way more helpful with due respect. I can't. So that's what I'm trying to look at. Mr. Letourneau. Thank you. So my understanding is that there's been updated proper language, which is trying to transition the building heights, but and specifically the portion of the building

[01:05:03] within 200 feet of the property boundary with Briarfield Estates, which are the closest homes would be at 45 feet. And then areas outside of that would be permitted to go to 65. But does staff know yet where exactly on the parcel that you would be measuring this limitation from from my understanding from staff's perspective it would be from the edge of right-of-way across the street from briarfield so that's we call it that the edge of the right-of-way the first 100 people would be measured from there and so on and so forth okay this i don't think you would be able

[01:05:38] to tell us on the spot now but could you research how far away the 65 foot portion of this application would be from the nearest home in Briarfield Estates, as well as the frontage on Arcola Mills Road? Yes, staff can have that information available. I may have, if you let me indulge for just a moment, I may have the distance from Briarfield. Between property lines, I have an approximation, including that enhanced buffer of 225 feet from the backyard of that, the closest

[01:06:13] residence on the north side. But to what spot on this project? The property line. So what I'm asking is the 65 foot because of the transition okay that's like i think sort of the back side of this application so my question would be from the 65 foot okay staff can get that information yeah and i didn't think you would have that on the spot um there were some additional uses that staff mentioned that you wanted to see proffered out i think one of them was vehicle service station um potentially or am i or is that more me was that was that one of the ones that staff staff

[01:06:50] is recommending that they do proffer out those additional uses, including vehicle sales, animal rental. And that's because of the proximity to the residential homes? The proximity, well, really, it's that and the incompatibility with the place type. Well, yeah. Which, yes, industrial wouldn't be anticipated here. Okay. Yes. If this property gets rezoned to IP, does that change any of the restrictions, proffers, or buffering that were approved as part of the JK1 application? This application is strictly to these two parcels so anything related to that other application would only be really related to what the zoning ordinance permits i can't speak more to specific proffers

[01:07:28] or okay and maybe for the record this might be a question for mr rogers mr galindo there is still a question about the permissibility of development on the entirety of the jk1 application based on staff's interpretation of the grandfathering resolution right i think that's relevant though though for the board to understand in this context?

[01:07:49] Yes, the application that was under review we think no longer meets the grandfathering requirements based on the resolution. So they still have some land use rights, but yes, there's a question about what those are. So the approved JK1 is not necessarily approved at this moment?

[01:08:07] Yes. Okay, that's a major. It is, it is. Ms. Umstead. Thank you, Madam Chair. Okay, I'm looking at your list. of uses that you would recommend the applicant proffer out on page 10 of of the staff report so is the only buy right use in that list of what seven or so the flex building is that the only buy right use in that list the only industrial buy right is correct only industrial okay

[01:08:56] If they chose to go with the flex building, do you see that as, based on height and setbacks, do you see that as better or worse than what you might think they want there? From staff's perspective, it's kind of difficult to say, only because, again, we don't anticipate this use period in the place type.

[01:09:20] the place type calls for 48 feet so regardless of how we negotiate the height even if I believe on the Panovich property and the applicant may speak more to it there's a great difference on the property and from the view shed on that end it's about 55 feet what we approximate what that would be but again still not meeting the place type and the considerations that we would look for okay I I really appreciate staff's um hard work on this I you know our perception here is we need more flex industrial in the county to meet the demand so it it's um it's interesting that that

[01:09:56] is by right but i understand why you recommend that it be proffered out because of the place type so i appreciate that um that's all i got thank you mr turner thank you madam chair i'm i feel like i'm missing something which wouldn't be a surprise but so the applicant has proffered out three six nine uh uses on the property you're recommending they proffer out an additional seven

[01:10:25] what's left i have a list just a moment well please provide the list so i apologize for the font here we had to fit all of these uses and obviously in this list there are some that are permitted by right but there are plenty of uses in here that the applicant still can can still build whether it's industrial or not staff can't emphasize that a full list of these

[01:11:03] uses are listed in the zoning ordinance in chapter two so essentially that's a that's an extensive list but essentially you feel that if they built things on this list that they are more compatible with the intended use of the parcel in that neighborhood they could potentially be depending on yeah obviously depending on the specifics of the application that's correct okay thank you i I guess I'm kind of going to follow up on Ms. Umstead.

[01:11:33] So flex industrial is a by right use, but it's incompatible with the place type. Is that what you're saying to us? If the rezoning were approved, then flex building would be permitted by right in that district, correct? Okay. Okay.

[01:11:51] For perspective as well, the Evergreen Meadows property is currently IP. There is an approved site plan for a dance studio that hasn't been constructed. So in the event that the applicant wants to come in for a flex building on that property, those were different considerations for that specific parcel.

[01:12:13] But with this rezoning and the complete total project area, that's a whole separate situation as well in terms of the construction of a flex building. Would it make any difference how, and I'm not saying we will or we should or what we require, but it would make any difference if there were particular design standards and things like that on a flex industrial use?

[01:12:36] Because I'm seeing other things on this list of permitted uses that could look to the eye very much like a flex industrial building, depending on how the flex industrial building is designed. I mean, a business support services building.

[01:12:53] I mean, I'm not sure I'd rather have a maintenance and repair. In fact, I'm sure I would not rather have a maintenance and repair service in a flex industrial building that has a nice design standard on it. Would that, yeah.

[01:13:10] The staff can't speak to the specifics of a flex building in design in this context only because it's the use itself that's correct. It's a bit tight. Yeah, I get it. I don't know what to do with it, but I get it. So thank you.

[01:13:26] Thank you very much. Good evening to both of you. Good evening. You have 10 minutes. You can stay sitting there or stand at the podium. Either way is fine with me. Good evening, Madam Chair, members of the board. I'm Steve Donchus. I'm counsel for the applicant in this matter.

[01:13:43] The applicant is in legal compliance with all notice and posting requirements. We had one outstanding issue remaining regarding the real parties and interest affidavit, and we've worked with the county attorney today, and it's my understanding that matter has now been resolved.

[01:14:04] And with that, I will turn it over to my colleague, Paki Crown. Good evening. For the record, my name is Paki Crown. I'm a planner with Bowman Consulting here representing the applicant tonight with Mr. Donchess.

[01:14:21] Make sure I've got the correct way to go forward and backward. All right. Sorry, there's a delay.

[01:14:45] I think I will, I would like to give some background for this property because I think the background puts it into the context of the property and what is surrounding the property today and the evolution of this area over the last almost 10 years.

[01:15:07] In 2017 the Evergreen Meadows property was rezoned as Steph said, it was rezoned to IP. There was a companion special exception for the daycare that is existing today and there were setback and buffer modifications that were approved with that application, which I'll speak to more in a minute.

[01:15:31] In 2018, Fusion Park came in for an application for an outdoor recreation lighted ball fields, soccer fields, that application was denied. In 2019, the general plan was approved.

[01:15:49] In 2019, prior to 2019, this area was designated for business development in the comprehensive plan. Then in 2019, with the new comprehensive plan, it was reclassified to suburban neighborhood.

[01:16:05] And another very important element that has affected this area and these properties, Evergreen Mills Drive was shifted from its previous location north of Broad Run.

[01:16:20] And so the primary access and the primary route to east-west route was shifted. and that has been replaced by our cola mills drive today which now intersects with north star boulevard then in 2020 the jk technology park was approved zoning it to ip for over 3 million square feet of data center user uses or over a million square feet of office uses on that property - So the land use compatibility issue

[01:16:56] that we have been working with staff on, planning commission through this application, the whole area changed. In about 10 years, the whole area has changed.

[01:17:11] From the time that the Evergreen Meadows property was approved for the daycare and the dance studio and medical office, the area at that time was planned for residential surrounding that area evergreen meadows was a major thoroughfare in the county which had a lot of traffic that went by the property and so when these changes in the comprehensive plan occurred and the surrounding properties were rezoned the result

[01:17:45] is in this area just between our Cola Mills Drive, Briarfield Lane, and North Star Boulevard. Today 83 percent of that area is now non-residential in uses and in zoning that surrounds these properties on the north and the west and the south side and then on the north side, the IP is also approved adjacent to the Pantovich property so what we have submitted to the county

[01:18:21] is to try to reposition this property so that it is more similarly situated in the area and can be developed. We can't develop it as outdoor recreation, we can't develop it as residential now it is zone CR1, we're asking for it to be converted to IP. We are not asking for any setback modifications or buffer modifications on the Pantovich property. We are providing for enhanced buffers along Briarfield Lane, and we're not proposing any vehicular access connection to Briarfield

[01:19:00] Lane except for a gated emergency access on Briarfield. For Evergreen Meadows, we have. We are including that property in this application because the access to our Cola Mills Drive, the Collector Road, which would provide access to this IP district now, we need to cross the Evergreen Meadows property.

[01:19:28] If you all, and I'm sure most, if not all of you, have been out to this area within the last few years, you know that the daycare is already constructed and that area has been developed. The road is in place, the parking is in place. So Evergreen Meadows, we're asking for the inter-parcel connection to be made, to access our Cola Mills Drive across their property, and to reaffirm the setback and buffer modifications that were approved with the

[01:20:01] original zoning. So this is a picture, an image of the Evergreen Meadows property in the red circle and a daycare. It was approved as a unified plan and so the setbacks and buffer modifications that we're asking for now to affirm is to affirm that the 35-foot setback on the west side of the property. If you look on screen left where we say a firm existing 35 foot building setback that's

[01:20:36] already been constructed that is the condition on the ground today. On the right side of the screen with the lighting it's a little difficult to see but that is the as built drawing for this unified plan here and parking what's important here is parking and access to the daycare comes off of the road that accesses off of our Cola Mills Drive located on Evergreen Meadows.

[01:21:03] There are cross easements on this property for utilities, and parking is shared on the property. As we work through the application with staff, the Planning Commission, and in our conversations with board members to date, we have proffered out nine of the uses that are, that would be permitted in an IP district. Data centers and a major utility or a substation are two that board members have requested as we've met with them, so we've added those to the proffers

[01:21:42] to be proffered out. But these nine were also shown on the list that staff put up just a few minutes ago on the screen. The PC, when we went to the Planning Commission and they were evaluating the height for this project, what is, what they were trying to accomplish was a transition in building heights from north to south.

[01:22:08] The property, the Evergreen Meadows property, is approved for a maximum building height of 60 feet. The JK property is approved for a maximum building height of 75 feet and so Planning Commission recommended that we go to 65 feet here. What is important to understand about the Pantovich property in particular is that when you go out to Briarfield Lane, along Briarfield Lane there's an existing house on the Pantovich property but for a distance of about a

[01:22:45] hundred feet back from briarfield lane it's at grade with briarfield lane behind the house it drops 10 feet and so the rest of the property is 10 feet lower than briarfield lane and so that was also a big consideration in what is seen from the from the briarfield lane property and from the surrounding residential properties we met with as staff said we met with step the briarfield estates residents last thursday night we were very grateful that they met with us

[01:23:21] and we discussed four things they asked us to consider four things one of them was building height they asked us to transition the building height across east to west across the property from 45 to 65 feet, we have incorporated that in our proper statement, we've asked for a berm, height limitation on lighting.

[01:23:46] - Say the last two things really quick 'cause your time's actually up. - And building materials. - And building materials. - So I will leave this on the screen because this is the illustration that I most wanted you to look at. This shows the distance. - Thank you, your time's up, thank you so much, thank you.

[01:24:02] - Happy dinner. Supervisors, if you have questions, Ms. Terconia, I'll go back to you. It is your district. I'll go back to you. Yeah, I want to thank the applicant for meeting with Briarfield Estates. I appreciate that you took the time to do that and, you know, that you deferred so that you could do that.

[01:24:19] Could you go through, because the building height is one of my main concerns, so maybe if you could go through what it would look like from Briarfield Lane, from the residential. This, what you see on the top right part of the screen are the building height transition requirements that are in the zoning ordinance today.

[01:24:44] So the zoning ordinance requires when you are adjacent to a district that has a lower building height. In this case, CR1 for Briarfield Estates allows for a 35-foot building height. If you're adjacent to that, then the ordinance requires that within the first 100 feet from the right-of-way line, the common right-of-way line with Brouwerfield Estates property line, 100 feet back from that,

[01:25:18] then your building height can't be more than 15 feet higher than the 35 feet that would be permitted in Brouwerfield Estates. So in this case, you could go to 50 feet. And then beyond that, you can go higher.

[01:25:37] You can go an additional 45 feet higher. So what we have, what we've done is we've taken that same concept out of the zoning ordinance and the request by the residents in Briarfield Estate was, Could you limit your building height to 45 feet, closest to Briarfield?

[01:26:01] So what we are proffering is to limit the 45 feet, 200 feet back from the Briarfield Estates property line. And that's where it would start.

[01:26:18] And just because my time's almost running out. So if you build the two buildings, one of the buildings would be 45, and I think the other building would be 65, correct? Right, right. And then if you build one building, you're thinking of the 55 feet.

[01:26:34] 55 across the site. And again, where these buildings will be located on the site, they will be 10 feet below grade of Browfield Lane. What this exhibit shows on the screen is this is an existing, this is the existing buffer on Briarfield Estates.

[01:26:57] And it's about 550 feet from, deep from Briarfield. Can I ask a quick question before the end? No, no, no. Oh, your time's, I'm sorry, your time's still going on. I'm sorry, yes, I'm sorry. So, okay, so thank

you for the building height.

[01:27:14] So the second thing is, would you be willing to proffer out the list that staff has so that there's compatibility with the SM place type, the suburban neighborhood, maybe not including the flex industrial? I don't know if you saw the list that staff had, contractor, energy storage.

[01:27:31] Ask the question. Ask the question. That's my question. We do not agree to proffering out flex in particular. No, no, I know that was the only one that I said. The other uses are all special exception uses that they have asked us to proffer out.

[01:27:47] And our position on the rest of them is they're special exception uses that will come back before the board if somebody wanted to locate them on that property. Okay, thank you. But we definitely not flex because we do believe this is suitable. Mr. Sains.

[01:28:04] Thank you, Madam Chair. Thank you for the presentation. Do you have an image or illustrative of what the building would look like? I did not do that.

[01:28:20] We have proffered design guidelines for the project consistent with the comprehensive plan. In the design guidelines, we say that it's going to be a minimum of 30% brick, masonry, stone.

[01:28:36] When we met with the Barofield Estates residents, we had it, and it is on sheet five of the CDP, so I refer you to sheet five of the cdp we had four illustrations on sheet five of of you know just different flex buildings and different materials that were used one of them um the building was white and they said we don't like that we want you to proffer that don't do that and so we've removed that from the um from it and we don't have in our design guidelines anyway that that you could do, DRIPIT or EFIS,

[01:29:15] they're not in our design guidelines. - All right, so I see figure four Proffert building illustratives on page 11. Maybe is that what you're talking about? It looks like St. James is on the right and something else on the left and they're all brick with window.

[01:29:32] - I'm sorry. - But if you could, I'm assuming we're forwarding to the next, whenever the next meeting is, in that time, could you do an image to show What it would look like from the street view, where was it, where's the street names, what the illustrative would look like from street view, Barfield Lane, looking toward the facility and looking out towards the Barfield community, you know, with the, I'm assuming you said, like, I guess you're going to do brick, so can we do those different viewpoints, but with the actual illustrative?

[01:30:10] With the actual illustrative. Yes. I mean, we can do that. All right, thank you. - Great question, Mr. Letourneau. - Thank you, and so the Briarfield Estates is in the Dulles District, and this is an interesting application because Briarfield line is the boundary between the two districts, and so the applications and the Little River District, and Supervisor DeCrooney's been doing a great job working on it, but obviously I have a lot of interest as well, given the nearby residential.

[01:30:40] So when it comes to flex, we refer to the word flex if it's all the same but in reality there's a lot of differences. The most successful product that we've had in this area and really in the county and the one with the least amount of vacancy are the single story sort of lower height flex industrial buildings. The St. John's property buildings for instance at Arcola Center are 22 feet tall and they're leasing up quickly with gymnastics and preschools and dance studios. The portion of the flex portfolio in the county that's

[01:31:19] not doing as well as the bigger taller stuff that tends to be manufacturing or distribution. So what need is there really to go even to 45 feet in this area where you already have a daycare here you've already kind of set the tone for what type of flex this would be. I guess I need to be convinced that there is some pressing demand out there because that type of product is not as is compatible with a residential neighborhood or a daycare that's gonna be adjacent to it.

[01:31:47] I understand JK1's there too, which as I said, is in some question or as staff confirmed, but what's the market out there for a bigger type of products in this location? - Well, two things I'd like to respond to with that. We're not asking just for flex use here.

[01:32:08] We're asking for the ability to have flexibility, no pun intended, for other uses to also locate on the property. So with that flexibility, we need... But nothing's going to be 45 heat.

[01:32:24] I don't know. Why would you say that when an office... What uses up there are 45? An office, you know, one of the uses that, you know, we have thought about, we have not marketed. There is no contract on this property.

[01:32:40] They're, you know, we're trying to position it so that it can be developed other than for residential houses. But this property is near the hospital. We're very near the hospital here. So at some point in the future, there could be a demand or a need for imaging centers, for, you know, office-related uses that could also go into this property.

[01:33:11] And be ideal for it because of its proximity to medical, the medical areas. I'm sorry? So office would be. Office, you know, and, you know, and other types of uses. We have proffered out manufacturing.

[01:33:28] We've proffered out, you know, the heavier uses at this point anyway. They can't go in there. Warehousing can't go in there. So, you know, to limit it to one use in the IP district, we think is short-sighted, because all of this area has really been subsumed by data centers, and what we're trying to do is create an area that hopefully provides some flexibility where the smaller guys can go.

[01:34:03] And Supervisor Letourneau, if I may, I certainly wouldn't be foolish enough to suggest, I know your constituents better than you do, but we have spent a significant amount of time in outreach with your constituents, and the 45 feet and 65 feet was suggested by the Briarfield residents, and they seemed satisfied with that, with those particular heights.

[01:34:28] So as far as Briarfield is concerned, and maybe there's outliers there, but the members of the community that we met with and have spoken with since were found the 45 and 65 feet to be acceptable. And the applicant has made that adjustment to accommodate your constituents.

[01:34:49] Okay, Ms. Brooksman. Thank you. Do you have an aerial in your slide deck while you're looking for that? The proposal is for both buildings to be flex industrial, correct? To be uses that would be permitted in the IP district.

[01:35:11] Flex would be one of those uses permitted. Okay. You don't have an aerial in your slide? Well, I have zeroed in on different areas. Is there a possibility to go back to slide five from the staff's presentation?

[01:35:28] I'm sorry, slide four? Well, you can. So you mentioned that you're not asking for, that's fine, thank you.

[01:35:44] You're not asking for a reduction in buffers or a reduction in setbacks on the Pantevich, but staff's concern was that you were asking for a pretty significant reduction in buffers and setback right

here, which is the closest, maybe not closest, but it's very close to the child care center.

[01:36:09] So can you talk me through why that's okay? Because this is going to have, you know, potentially a vulnerable population there. And I think we have setbacks and buffers for a reason. Well, as I explained in the slide that I had, the daycare and the adjacent property that is a part of this application now was approved as a single application.

[01:36:44] Yes. And the access to the daycare is through the IP. Right, I get that. Basically, it's the road. It's the road and parking area. And so they share the parking area and the road, and they have...

[01:37:02] So are you saying the parking area is between the pink building and the yellow line? Oh, yes. There's existing parking there. So your justification is it's okay to reduce the buffers and the setback because there's parking and a road there. Is that the argument? - My argument is that it was designed as a unified plan and when that project was approved, it was.

[01:37:26] - Are you saying that it was already approved with the setback and buffers reduced? - Yes, all we're asking to do is reaffirm what's already been approved. - So you're not asking for additional setbacks and buffer reduction than what was already approved? - Correct.

[01:37:41] - Okay, thank you and thank you staff for pulling up that slide, thank you. So earlier you said, I'm sure you guys have all gone out there. Well, truthfully, I haven't gone out there. And so what I will do before I see you all again is go out there and take a look at it.

[01:37:59] I think the question Mr. Letourneau asked was very important. How far is this from the nearest home? If I could see design guidelines, I know that can't be the final decision point, but I will look at the design guidelines for that. But I will have to do a field trip and go out there before I can.

[01:38:16] I've said this to you before, Becky, I don't have a good mind's eye. And so I don't imagine things well, which is why I asked Mr. Sainz to pull it up in Google Maps. So I'll go out, I'll take a look at it, and then I will be able to ask more cogent questions after I do that. Thank you. All right, we do have two speakers on this item.

[01:38:35] Madam Chair, can I just direct you to one sheet in the plan set, which would help you when you're going out there? Believe me, it won't. No, no, it is. But sure. It does address. We have cross sections on the last sheet of the plan set. And the cross sections show the distance from the closest house to the Pantovic property.

[01:39:04] And so you will see there are four cross sections that are shown there. So I think that'll help when you're on the ground. It'll help. Okay. Glad you have that trust in me. What normally helps is I grab one of my colleagues, take them, often Matt, and be like, what's this going on here? What's this going on here? Or Corona, somebody else. But I just, I need to see things.

[01:39:25] Sure. It just doesn't, I need to see things. And so I will do that. I'll go out and take a look at it. We do have speakers on this item. We have three speakers on this item. I'm going to call you in order. I don't know if they're, I think they're here in the room, but I'm not sure.

[01:39:43] I think it's Soheel Zadejian, Robert Batchelder, and Emily Townsend. If you are here. Madam Chair, all three of our speakers are on the line. All three of our speakers are on the line. Well, let's go.

[01:40:03] I'm not sure that person's ready yet. You want to go to the next speaker and then go back and try to talk to that person again? Sounds like they're having kid issues, to be honest. I completely

understand that. Yes.

[01:40:25] Hi, this is Rob Batchelder. Thank you, board, for hearing out. I actually was the individual who led the application for the Evergreen Mills and Evergreen Meadows project back almost 10 years ago now. And when we started this process and we went to, you know, basically get a special extension for daycare for CR1 and to rezone PDIP to build a dance studio for my family, that entire was completely different.

[01:40:53] There was supposed to be 2 million square feet of retail and office across the street. As you guys, I'm assuming, know, directly across the street from us now is a planned power substation by Novak directly across the street.

[01:41:10] And the catty corner to us is a data center already under construction, a huge data center. And directly behind the Pantovich property is the JK data center, which is approved or potentially not approved. So I think it's very confusing to us as property owners in that area who kind of made significant investment, our life savings in that area, who, you know, have had businesses in Loudoun County.

[01:41:34] My parents own dance studios that have been in Loudoun County for 40 years. I've owned significant businesses in Loudoun County for over 20 years and invested our life savings in this property. We've seen the county completely change the land around us, even though, you know, we had specific uses 10 years ago.

[01:41:51] So to hear county staff say that what's being suggested here does not inform I think is a little confusing, and I hope you guys do go out to the property and look at the property and understand when you're standing on the property, again, directly across the street at the power substation and you have two major data centers basically boxing us in.

[01:42:10] So I think what's being proposed here is completely actually in uniform with what's happening in that area in the county. And to suggest that CR1 is in uniform is not. I would say that is not in uniform with what's going on. And I do believe that, you know, hopefully the Board of Supervisors will see that, will understand that, and understand what we're asking for here is simply to add uses that we can potentially gain value out of this land because it no longer conforms with building our family's dance studio because we no longer have homes going in across the street.

[01:42:45] We no longer have homes going in behind us. It is all becoming industrial. And when you're there, there are a few CR1 homes in that line. Incentivich can speak to it more than I can, but every one of our neighbors that we've spoken to is in support of this because they see the same thing, and they believe that their properties are no longer residential.

[01:43:05] Thank you so much. Your time's up. I appreciate that. Thank you. can we go to the next person please hello yes we can hear you yes good evening so all that again speaking i represent uh evergreen mills road llc which is the ownership entity of the daycare center the tle um the learning experience uh right on our cola mills um i had raised some court i had raised i had raised some questions regarding our concerns about um about this uh this

[01:43:39] request and the only reason i'm calling in is to reaffirm my email saying that all the responses i have received and all the documentations i have received are sufficient enough to for us to be satisfied and all questions have been answered so for us there's absolutely no reason to object or stand against this project okay thank you sir and we have one more speaker good evening supervisors This is Emily Johnson with the Piedmont Environmental Council.

[01:44:17] A little sick today, so calling in. I spoke on behalf of PEC in opposition to this application at both public hearings before the Planning Commission. We stand by those comments, which noted the proposal's absolute inconsistency with its suburban neighborhood place type, its further fragmentation of the Arcola area, and its loss of transitional spaces.

[01:44:34] Virginia Code Title 15.2, Section 2286 grants local bodies authority to change a property zoning when public necessity, convenience, general welfare, or good zoning practice requires, but mandates a statement of the public purposes, therefore. The applicant offers one overarching public purpose in their statement of justification that this proposal strategically enhances the county's economic development efforts.

[01:44:56] However, no sufficient public purpose exists to put that economic development here specifically, and even the general aim is outweighed by other public purposes and localized harms. You affirmed your goal for this area to be the suburban neighborhood place type earlier this year. Allowing this rezoning risks recreating more situations like Hiddenwood, located just one street over.

[01:45:15] Arcola's ever-shifting zoning has created two types of outcomes, shown in submitted public comment letters. As described in your staff report, those in support of this rezoning ask that, quote, the county rezone their own parcels, end quote. Without adherence to the comprehensive plan, that's eventuality number one, a domino effect leading to more and more property turnover, loss of homes, and vanishing character.

[01:45:38] Meanwhile, those in opposition fear, quote, the degradation of property values, quality of life, and neighborhood livability, end quote. That's eventuality number two, a devaluation that leads to further suffering for those who stay. Despite the proffer excluding some heavy uses, as is, this is still industrial encroachment, and it puts neighborhoods in untenable positions.

[01:45:58] We would also like to push back on the misuse of the word infill by the applicant. They call this industrial expansion infill development, but since it isn't residentially compatible, it doesn't align with the Comprehensive Plan's vision for infill, which says infill should maintain neighborhood vitality and facilitate complete, connected, and distinct communities in established, stable areas.

[01:46:19] This Arcola area is perhaps notoriously in flux, and the application fails to improve existing neighborhoods or facilitate connection. You all denied Hiddenwood with the good idea that you can do more for this area, that you can prioritize transitional uses, respect existing residents, and invest more into their communities to ameliorate regrettable decisions.

[01:46:38] Please stay that course tonight. Thank you. Thank you. Thank you very much. All right. Those are all of our speakers. Mr. Crony, I will go to you for a motion. A motion. Okay, I move that the Board of Supervisors for Leji 2024-0026, Panovich Property Rezoning, ZMAP 2024-0006 to the January 21st, 2026 Board of Supervisors business meeting for action.

[01:47:10] I caught that. Did you see me? I did see you. Good. It's very impressive. Very impressive. Most of us may be seconded by Mr. Bricksman's already requested, already seconded the motion. Discussion on the motion, Mr. Crony. Thank you, Chair Randall.

[01:47:26] So I hear the applicant that 83% is non-residential at this point in this area. I think there's been decisions that have been made over the years that have made this area more industrial. But I am

concerned that this rezoning will encourage other neighboring parcels to request a conversion to IP from residential and would like to see the uses consistent, at least with the suburban neighborhood place type.

[01:47:59] I want to thank the applicant for proffering out data center and utility substation major, but I would encourage you to look at other uses that staff has identified that are in the suburban neighborhood place type.

[01:48:15] I know they're a special exception, but so is data center and utility substation, not including the flex industrial. I think the berm is appreciated, the six-foot berm along Briarfield Lane to help with the buffering of the residential of Briarfield Estates and the 75-foot buffering.

[01:48:39] Hopefully, you'll put in trees that are fast-growing to help with the buffering. And I also appreciate that you're looking out for the exterior lighting and some of the building materials to be more office-like, more in keeping with the suburban neighborhood place type.

[01:49:05] There is still some residential, so I just want to be careful to make sure that we're at least looking at a development that could be compatible as much as possible with the residential and the existing daycare use.

[01:49:21] So I look forward to working with you a little further, but again, I appreciate you reaching out to Briarfield Estates and taking into account all of their requests or most of their requests. I look forward to working with Supervisor Letourneau to make a few minor modifications.

[01:49:42] Thank you. Thank you. Ms. Briggsman. Thank you, Madam Chair. So I'm going to vote for this to go on to January meeting, but I have some reservations. I'm about 50-50. This is a really problematic area overall, although it's not my district, but I'll definitely be having conversations with um supervisor to crony and um i have been out there i will probably go out there again i've been out there a number of times just based on all the applications we've had there um and i will go out there again but i'm not i have some reservations thank you thank

[01:50:19] you supervisor letourneau thank you um so i think there's there's some positive things here um i'm glad that the meeting with briarfield did occur which should have been a little earlier in the process, but we got there, so thank you for doing that. And also, I know there's a long history here with Briarfield and the applicant and all sorts of things. Before I represented this district, this area, I might add, I think I can understand rezoning this property, you know, given what's going on around it. Keeping it residential doesn't necessarily make sense.

[01:50:56] I think, as I said in my questions, I think where I'm struggling a little bit is, in light of what's been proffered out, we can debate whether medical office is really viable or not. There's approved parcels for medical office right adjacent to the hospital that haven't been built yet, so I tend to think that that's a little bit of a stretch, but we can talk about that.

[01:51:18] But I'm having trouble understanding what exact uses really need to be that high, and I would prefer to see lower uses, lower heights. The 50% increase in what the ordinance allows would be 35, for instance, 50% increase.

[01:51:36] So I think with a 35-foot height, you can do a lot of different flex sort of things, and that's really what the product that's most appropriate here is. Putting aside, I'm glad that there was positive feedback and input coming on this, but I'm trying to look at what really makes sense in this area where you already

have a daycare that's active and operating and what types of uses you really want around that because this is very much a transition parcel. So I understand it's been a tough road here. I'm certainly not close-minded

[01:52:09] on on getting to yes here but I need a little more convincing on exactly the specifics particularly of the height. I'm looking forward to the information from staff understanding the exact distance between the transitioned buildings from one side to the other. And so I'm sure we'll have a conversation here between now and when this comes back to the board and we'll continue to work on this and hopefully get it to a place where it's acceptable. All right. Wonderful.

[01:52:40] Jackie, would you like a closing, Mr. Crony? No, thank you. All right. Motion made by Supervisor Second by Supervisor Briggsman. All the people say aye. Any opposed? That motion will pass 9 to 0. Supervisors, before we leave, I have a point of personal privilege and a favor.

[01:53:00] Next Tuesday, I have been invited, I am honored to be invited to Capitol Hill for an unveiling of the statue of Barbara Rose John Powell. I'm sure all of you know who that is because all of you all understand Virginia history.

[01:53:19] And because African-American history is also Virginia history, I know you know who that is, right? So the unveiling is at 3 o'clock. I cannot get back here by 4 o'clock. It's a very short agenda. It is basically the assessments of our staff.

[01:53:39] And so my request, and by the way, we haven't put the agenda out yet or go out tomorrow. My request is that we move the meeting next Tuesday from 4 o'clock to 5 o'clock to give me time to get back because I absolutely want to be here for the items on the agenda that evening.

[01:53:57] Does anyone have an objection to making the meeting at 5 o'clock next week? Yes, I appreciate it. Thank you. So our meeting next Tuesday would be at 5 o'clock. Thank you. You're good. You're good. Unless you want to come to the meetings.

[01:54:15] You're good. Thank you, and I think that's all, and we are adjourned.



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